THE STATE
Versus
TALENT CHIRONGOOMA

HIGH COURT OF ZIMBABWE
MUZOFA J
CHINHOYI, 28 April 2026

Assessors: *1. Mr. Mutayiwa*
2. Dr. Mashavave

Criminal Trial

R. Nikisi, for the State
I. Murambasvina, for the accused

MUZOFA J: [1] The accused was the lastborn in a family of twelve. He lived with his family, together with his old parents. The family harbored a deep-seated belief that the deceased, his father, practiced witchcraft. On the 10th of September 2025, the accused allegedly struck his 86-year-old father with an axe and a wooden log all over the body, leading to his death. He was arrested immediately and charged with murder.

[2] He pleaded not guilty to the charge and raised the defence of an alibi. He said he was at work. His mother advised him of the deceased's death. He said these were trumped-up allegations by Tinashe Mugura, 'Tinashe'. He also challenged the unconfirmed, warned, and cautioned statement that he did not make it freely and voluntarily

The State Case

[3] At the onset, the state produced the post-mortem report by consent. Doctor Ephraim Sanhwa, who examined the deceased's remains, concluded that death was due to epidural hemorrhage and hemorrhagic shock. It was marked exhibit '1'. The axe and the two wooden logs were also produced by consent and marked exhibits 4, 5, and 6, respectively. The weapons were weighed, and the certificate of weight was produced by consent and marked exhibit '3.'

[4] The evidence of six witnesses was formally admitted in terms of Section 314 of the Criminal Procedure and Evidence Act [*Chapter 9:07*], the CPEA. The admitted evidence was formal; it did not constitute part of the contested issues in this case.

[5] I briefly summarize the evidence for completeness. Tinashe Magura was the accused's brother. He received a call from Makaita, their mother, who advised him about the deceased's death. He reported the matter. I comment on his evidence. In his defence outline, the accused referred to this witness as his nemesis who falsely incriminated him, yet his evidence was admitted by consent. The defence, in its wisdom or otherwise, did not find it necessary to controvert his evidence. That negates the allegations of animosity and false incrimination.

[6] Margret Mauya and Kudzanai Nyamadzawo were police officers stationed at Eiffel Flats Police Station by then. Margret ferried the deceased's body from the scene of crime to Kadoma General Hospital. Kudzanai ferried the body to Parirenyatwa Hospital from Kadoma.

[7] The first witness to give oral evidence was Makaita, the accused's mother. She was obviously torn between two. As she stood in the witness stand and faced the accused, one could sense the pain and sadness in her face and voice intonation. It was difficult to tell which was more painful, her child turned murderer or the death of her husband, the deceased.

[8] The deceased was her husband. They had twelve children and the accused was their last child. On the fateful day, the accused left for work in the morning and returned in the afternoon around 1300hrs. He was in the company of his friend, one Masiganda. She only knew the *alias*.

[9] When the accused arrived, she was sitting outside their kitchen hut with the deceased and some church members who had visited them for prayers and encouragement. The presence of the church people ignited something in the accused. He verbally attacked the deceased. He shouted that the church people must not talk to the deceased about God. Deceased was the devil incarnate. He practiced witchcraft, he did despicable things, and used non-natural means to have sexual relations with his daughters-in-law (the accused's wife). The deceased's conduct had caused untold suffering in the family.

[10] He picked a wooden log; the church members, sensing danger, took to their heels and left the family to deal with its problems. The accused struck the deceased once on the hand.

His friend tried to restrain him. He too was struck. She could not do anything except to cry out for help. She decided to rush and call her son in law to restrain the accused. She left the scene.

[11] She confirmed that the deceased was engaged in witchcraft. The accused was mostly affected by the witchcraft. He was frequently tormented by unseen things. Two of his children were mentally retarded. All this was due to the deceased. As a family they consulted different spiritual mediums to assist to no avail. Every year deceased's cattle died as a result of his 'things'. She told the court that she even invited the police to see the deceased's 'things' but they declined the invitation. She truly believed the deceased was a witch and the accused lived a tortured life because of the deceased.

[12] As she gave her evidence tears rolled down her cheeks. Tears of a mother torn to pieces by her traumatic lived reality. A husband who died at the hands of her own son. What touched her mostly, she explained her tears, was that the accused was now incarcerated. He had children and a wife. He took care of her. Now they have no one to take care of them.

[13] When she eventually returned to her homestead with her son-in-law, the deceased was in the kitchen hut badly injured. The accused was in a nearby bush. She advised the accused's brother Tinashe about the death. When her son in law was preparing to take the deceased to the hospital, the Police arrived.

[14] Tichaona Ndlovu was the second witness. On 10 September 2025 the accused invited him to his parents' homestead. It was around 1400hours. They went together. On arrival he saw the accused's parents seated outside with two other persons unknown to him. The accused was not amused; he challenged the visitors and chased them shouting that he didn't want anyone at the homestead.

[15] The accused took a log probably to strike the people; he tried to restrain him but he was struck by the accused. He fell unconscious. He did not see how the deceased was assaulted. He confirmed that his alias was Masiganda surprisingly he said he was not accused's friend. He also confirmed that he had purchased a piece of land from the deceased. He was not aware of any dispute over the purchased land.

[16] Tonderai Chatambudza was a police officer stationed at Eiffel Flats police station. He was the investigating officer. After he received the report through Tinashe he proceeded to the scene of crime with other officers. They found the deceased's body in a hut. It lay in a pool

of blood. The body bled from wounds at the back of the head, fractured legs, cut stomach, fractures on the right hand and bruises on the back. He recorded a statement from Makaita who showed him the weapons that the accused used: the two wooden logs and an axe. He recovered them. He observed that the axe and the two wooden logs were blood stained.

[17] Before the witness was released, the State applied to produce the unconfirmed statement by the accused. It was challenged. A trial within a trial was conducted. In a separate judgment delivered ex-tempore, the statements were ruled admissible. I briefly incorporate the reasons in this judgment.

[18] The accused alleged that he was assaulted by the police. His feet were swollen and he was treated at prison. He could not give further details on the identity of the police officers. He also said he was denied food.

[19] The state proved that the accused was inconsistent in his averments on the assaults, which destroyed his credibility. There must, naturally, be a causal connection between the alleged duress and the making of the statement. This will not be assumed[1]. It is therefore necessary for the accused to carefully set out how the alleged assaults or any other influence was exerted to influence the making of the statement.

[20] The statement was recorded before the accused was admitted at remand prison. When the attempt to confirm the statement was made, he was from Prison and had become wiser. He said he was assaulted and was treated at Prison. The State produced his warrant of admission at Kadoma Prison. The warrant showed that he was interviewed on admission. He did not report the assaults neither were any injuries reported and recorded. The warrant did not even show that he was treated for any injuries at Prison, as he alleged. That laid to rest his claim that he was assaulted. The two police officers who gave evidence impressed us as competent policemen who were giving an unbiased account of their investigations. They made a favourable impression on us.

[21] Denial of rights is considered undue influence[2]. Accused said he was denied food. Food is one of the basic needs of a human being. In appropriate cases where it is established

[1] S v Shabalala 1986 (4) SA 734 (A)

[2] *AG* v *Slatter & Ors* 1984 (1) ZLR 306 (S) where denial of legal representation was held to be undue influence.

that food was denied to sway the accused's free will, it can be regarded as undue influence. *In casu* the facts did not show that the accused was denied food. Under cross-examination, he explained that food was provided, but not in the way he expected. It was served in a big dish and placed inside the fence. The only reasonable inference is that food was provided. The Police could have done a better job in serving it.

The state then closed its case.

The Defence Case

[22] The accused was the sole witness in his case. He adopted his defence outline. He confirmed that the deceased was his biological father. Their relationship was not too close. Under cross-examination, he said he had no reason to attack the deceased. He knew of his evil machinations, his two children had mental problems, and he once had erectile dysfunction, all caused by the deceased, but he did not kill him. There was no reason to attack him on 10 September 2025.

[23] Despite the fact that his mother shed tears for him on the witness stand, he opted to say she was mistaken in her evidence. Similarly, Tichaona was mistaken; there was bad blood between him and Tichaona. Even his brothers did not like him.

The defence then closed its case.

Closing Submissions

[24] The court is indebted to both counsel for the detailed closing submissions filed timeously.

The State's submissions

[25] The Court was urged to convict the accused of murder. The alibi defence must be rejected; it was not raised timeously, and it was rebutted by the two State witnesses, Tichaona and Makaita. The accused, in his bail application under HCCR 1456/25, which is part of the trial proceedings by operation of law in terms of s117A (7) of the CPEA, raised self-defence. The defence of an alibi is an afterthought. It should be dismissed. The court was referred to South African authorities, where a similar provision was interpreted[3].

[3] Dlamini vs CCT 1/98, S v Balkwell & Anotehr 2006)1) SACR60N

[26] On belief in witchcraft, the State took a two pronged approached. Firstly, that it is not a defence but may be taken as mitigatory in terms of s 101 of the Criminal Law Code. On the other hand, on the authority of *S v Hamunakwandi* 2015 (1) ZLR 392 (H), it seemed to have entertained that it can be treated as provocation. It interrogated the issues and concluded that there was no provocation. In my view with the clear expression of the law maker the belief must be treated as mitigatory and nothing more. Further, it submitted that, on his part, the accused lied and his lies must be treated as corroborating the state case. The accused lacked the actual intention to kill, but he had a constructive intention to cause the death of the deceased.

The defence's submissions

[27] The court was urged to acquit the accused. It was submitted that there was no evidence on how the accused assaulted the deceased to death. Makaita and Tichaona contradicted each other on what transpired on the day. More specifically, Tichaona, in the summary of evidence, said he saw the deceased and some church members at the deceased's place, yet in court, he said he did not see the deceased. On the authority of *S v Gardener*[4] if it is shown that a witness has lied and the lies go to the root of his story, then he cannot be regarded as a credible witness. To that extent, the inconsistencies in the state witness's evidence did not disprove the accused's alibi.

[28] On the admissibility of the accused's application for bail under HCCR 1456/25, it was submitted that the proviso to s117 (A) (7) of the CPEA was not satisfied. It was not shown that the accused was warned that the evidence during his bail proceedings may be used against him during trial.

[29] On the effect of belief in witchcraft, in this case, *Mr Murambasvina* referred to various cases in this jurisdiction[5] and s 101 of the Criminal Law Code. From both case law and the law, the position he submitted was that, despite a genuine belief that the deceased was a witch or wizard, that belief is only mitigatory. It is neither a complete nor a partial defence.

[30] In conclusion, it was submitted that the state witnesses were not credible. Makaita made several concessions, which confirmed that she did not see the accused assaulting the

[4] 1982 (2) ZLR 290 (S) at 295 G – 296 A
[5] S v Hamunakwandi 2015 (i) ZLR 392 (H), S v Chiurungwe HH295/15, S v Techu & Others, HH 371/15, Tsaura & Others vs S HMT2/20, S v Tshuma HB 171/22

deceased as described by the State. Tichaona did not see anything. Accordingly, the accused must be acquitted.

Issues for determination

[31] In determining whether the State proved its case beyond a reasonable doubt, the following issues commend themselves for consideration.

i. The credibility of the witnesses.
ii. The admissibility of the accused's bail application proceedings under HCCR 1456/25

Analysis

1. *Credibility of witnesses*

[32] The credibility of a witness can be assessed from various perspectives chief among them are demeanor internal and external consistency, motive, memory reliability, the list is endless. It has been said that demeanour alone is not enough it must be coupled with other independent considerations. Courts must always guard against being swayed by witnesses who may seem genuine but could be mistaken. Some people are naturally confident and speak eloquently. Consistency on issues that go to the root of the case is important. The Court must consider whether the witness was consistent in his /her evidence from the evidence in chief and under cross-examination. External consistency is when the witness's evidence aligns with other admissible evidence before the Court. Thus, not every inconsistent statement renders a witness' evidence unacceptable.

[33] Makaita was a very emotional witness. She was empathetic to the accused for obvious reasons. She bemoaned his life's struggles and what he left behind. We asked ourselves whether she was so emotionally attached to the case to embellish her evidence intentionally or subconsciously? We did not think so. Under cross-examination she was asked if she indeed saw the accused at the scene. Her response was short and telling. She simply said, 'I *have taken an oath, I must speak'*. In our view, even if she was in pain, she felt it her duty to tell the Court what transpired.

[34] If credibility solely depended on demeanor, Makaita's evidence would be accepted in its totality. The wisdom in cases such as *S v Sauls & 2 Ors*[6] is instructive. In that case, the court, on assessment of evidence, stated that a court must weigh the evidence and consider its merits and demerits. It must then decide whether it is satisfied that it is truthful, despite any shortcomings, defects, or contradictions in that testimony. Other factors that must be considered include the vested interest of a witness in a case. The interest has the ability to either exaggerate the evidence against the accused or to downplay the accused's role in the commission of the offence. The court must be alert to all those salient prejudices that may sway the court's decision.

[35] Makaita had an obvious interest. On one hand, this is a case to resolve the issue of her late husband's death. However, it is her son who stands accused of the murder. We find her credible, but she downplayed the accused's role. She is the one who showed the Police the weapons that the accused used to strike the deceased. However, in court, she said she saw the accused strike the deceased once with a log. She tried to extricate herself from the axe. She said she just showed the Police the axe since it was nearby, but the accused did not use it. The explanation was hard to believe.

[36] We accept her evidence that the accused returned from work and had a confrontation with the deceased. Even the defence could not find a reasonable explanation/reason to have her evidence discarded. Under cross-examination, the accused could not say much except that she was mistaken. We were not convinced that she only saw the accused strike the deceased once. She downplayed how the accused assaulted the deceased to minimize his moral blameworthiness. The concessions she made did not go to the root of this case. They were on peripheral issues.

[37] The defence urged us to find Tichaona not credible since his summarized evidence and the evidence in Court differed. That should not detain the Court. The summary of evidence placed before the Court was not evidence; it is similar to a State Outline. A witness' summarized evidence becomes evidence when it has been formally admitted in terms of s314 of the CPEA. Tichaona's evidence was not formally admitted. Secondly, the alleged inconsistency did not go to the root of the case as advanced in the *Gardner* case (supra).

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[6] *1981 (3) SA 172 A*

[38] Tichaona struck us as restrained it was apparent that he did not want to disclose a lot of information. He said he saw the church members who were at the deceased's homestead, but he did not see the deceased. One wonders how he could not see the deceased. Even if we were perplexed by this part of his evidence, we reject the accused's submission that he was not at the scene of crime. He was at the scene. Makaita confirmed his presence. We also reject the insinuation that there was bad blood between him and the accused. His evidence placed the accused at the scene of crime.

[39] We also reject that the two witnesses contradicted each other. They corroborated each other on the key aspects of this case that the accused was at the scene of crime. He confronted the people at the homestead and picked a log, threatening them. That neither of them saw how the deceased was then assaulted to account for the grievous injuries is of no moment too. The trail of evidence is that the deceased was at the scene, the church members had left, Makaita fled to seek help, and Tichaona lay unconscious. The only compelling inference is that the accused, who had struck the deceased once in the presence of Makaita, continued to assault him until he sustained the injuries recorded on the post-mortem report. We were not given any plausible reason to conclude otherwise.

[40] From the two witnesses' evidence, the accused's defence of alibi falls flat on its face. Where there is credible evidence of the accused's presence at the scene, the court is entitled to dismiss the alibi as we hereby do, even if it was not investigated. In any event, the accused confirmed that he had not raised it to the Police.

Admissibility of the accused's bail application proceedings under HCCR 1456/25

[41] In an attempt to disprove the accused's defence, the State relied on his purported defence in his bail application under HCCR 1456/25 where he raised self defence. The issue is whether that evidence is admissible before this court. The admissibility of the evidence is regulated under s117 A of the CPEA which provides,

> '(7) The record of the bail proceedings excluding the information referred to in subsection (5), shall form part of the record of the trial of the accused following upon such bail proceedings:
>
> Provided that if the accused elects to testify during the course of the bail proceedings the court must inform him or her that anything he or she says may be used against him

or her at his or her trial, and such evidence becomes admissible in any subsequent proceedings.'

[42] It cannot be gainsaid that bail proceedings form part of the trial proceedings, the wording is clear, it needs no interpretation. That being the case, the issue raised by the defence is whether the evidence by the accused is regulated by the proviso to s117 (7) (A) of the CPEA.

[43] What the defence failed to appreciate is that the proviso relates to a different genre of evidence during bail applications. Taking the literal approach to interpretation, which is the starting point to any interpretation of statutes, the proviso is applicable where the accused elects to give evidence during the bail application proceedings. My understanding is that, where the accused decides to give evidence, before he gives evidence, the Court is obliged by law to warn him that whatever he says shall be used as evidence against him during subsequent trial proceedings.

[44] I perused the record of proceedings under HCCR1456/25. The accused did not elect to give evidence. His evidence was in an affidavit in which he associated himself with the bail application that raised the self defence. There is no doubt that this is evidence, and Courts have pronounced that in bail applications, the applicant must support his application by way of evidence and must indicate his defence[7]. As a result, bail applications are accompanied by the accused's affidavit. The affidavit is filed not out of election but force of law.

[45] It exercised my mind whether this is the evidence that the law maker envisaged when it promulgated the proviso? Although evidence can be adduced through an affidavit, there are salient challenges in extending the warning to the evidence on affidavit. The affidavit is prepared in the absence of the Court; no judicial officer can be held accountable in such circumstances. It would be too onerous to extend this provision to the making of the affidavit.

[46] The State referred the Court to a number of South African[8] authorities which dealt with a similar provision and urged this Court to accept the evidence as admissible. I also came across *Balkwell v The State*[9] where the Court accepted an affidavit filed during the appellant's bail application. The appellant's defence lawyer had produced the affidavit as an admission, but on appeal sought to disavow the affidavit on the basis that the appellant was not warned in

[7] S v Madzokere & Ors 2012 (1) ZLR 538 .S v Ndlovu 2001 (2) ZLR 261
[8] S v Nyengane 1996 (2) SACR 520, S v Botha 1995 (2) SA ,
[9] [2007] SCA 91 (RSA)

terms of s60 (11B) (c) of the South African Criminal Procedure Act 51 of 1977 which is similar to our s117(7) of the CPEA. The Court dismissed the objection since the evidence was not introduced through s 60 (11B) (c) but as an admission.

[47] Although the South African cases dealt with a provision similar to the one under consideration, the factual conspectus is different. The authorities do not resolve the issue before this Court. In the first two cases, the accused had elected to give evidence during bail hearing. In this case the narrow issue is whether the affidavit is admissible before this Court.

[48] The jurisprudence on the applicability of s117 (7) of the CPEA has not yet developed in our jurisdiction. It is an area that may receive further interpretation in appropriate cases. I have set out herein the position which I believe must inform and provide a guide whenever an accused elects to give oral evidence. What emerges from the authorities referred to by the State which l believe is applicable in our jurisdiction is that,

i. Where the accused elects to testify during bail application proceedings the Court must warn him that whatever he says will be used against him during trial.

ii. The onus is on the State to prove that the accused was warned.

iii. The provision does not contravene the right to silence or the right against self-incrimination.

iv. The warning must be given to both legally represented and unrepresented accused persons.

[49] That does not resolve the issue before the Court. I also considered the persuasive approach taken in the *Sibeko v S*[10] case where the appellate Court set aside the trial Court's decision to rely on the affidavit by the appellant filed during bail applications. The appeal Court raised a number of procedural irregularities including that the appellant was not warned that the evidence would be used against him. In a terse judgment it also noted that the appellant was not given an opportunity to respond to the affidavit before the trial Court.

[50] In this case when the record of proceedings was put to the accused ,he denied making the affidavit. He denied signing it. He literally dissociated himself with it. The application was filed through *Matiyashe and Associates*. Even if the State simply wanted to test his credibility

[10] 2024 (2) SACR 25

on the defence he raised in the affidavit and before this Court, it was the State's duty to prove that he actually made the affidavit and affixed his signature, that was not done.

[51] Since the record of proceedings is before the Court the Court cannot turn a blind eye to it. It is its probative value that the Court must consider. It is of low probative value since we have already dismissed the alibi as unsustainable. In *Madlala v State 2015(2) SACR 247* the court stated that;

"The admission of inadmissible evidence is material and prejudicial to the accused if it forms the basis for the adverse decision reached. *In casu,* the failure of the regional magistrate to 'exclude' the 'inadmissible' evidence is immaterial and non-prejudicial to the accused because the regional magistrate did not emphasise the inadmissible evidence in reaching his conclusions as to the factual issues in the case."

[52] I therefore come to the position that the State could rely on the affidavit for the purpose of cross examination to test his credibility. Despite the finding, we have already found the accused's defence of an alibi unsustainable and dismissed it.

[53] There was overwhelming evidence against the accused, and his defence did not salvage anything in his favour. His statement corroborated the state witnesses' evidence. His response to the caution was,

> "I admit to the charge levelled against me that I murdered my father by assaulting him with wooden logs. The deep cuts he sustained were as a result of the logs I used to strike him. I did not use an axe. I killed him because I had erectile problems, which I suspected he had caused."

[54] That was an admission which set out how he committed the offence and the reason he committed the offence. Under cross examination, the accused tried to wriggle out of the statement and said the police got the information from his brothers.

[55] We found the accused's version or evidence to be incredible or implausible. He did everything possible to deny any evidence which would show the depth of his unlawful acts. The following examples are illustrative.

i. He said he was assaulted to give a statement yet under cross examination he said the particulars in the statement were given to the Police by his brother who did not like him.

ii. He admitted that the deceased had caused untold suffering to him but had no motive to kill him. Tinashe, his brother falsely incriminated him yet he admitted Tinashe's evidence without raising a finger.

iii. On the bail applications, he initially conceded that he made three bail applications but later denied making any statement and dissociated himself with the application referred to in this Court.

iv. He said there were unsettled scores between him and his brother implying they are the ones who told the police was recorded in his statement. The accused forgot that he said he made the statement under duress. Lies have short legs. To allege that his brother gave the police the information in the statement is blowing hot and cold.

[56] In the final, we find that the accused had an underlying vendetta against the deceased, which found expression on the day in question. He had a motive to kill the deceased.

[57] The next consideration is whether he committed the offence with actual intention. He did not, there was no premeditation except that he harbored some anger against the deceased. The injuries sustained by the deceased say it all. The deceased was struck several times on the right side of his body. He was also struck from behind, which could imply that the deceased may have tried to escape. He had injuries on the left buttock and behind his back. The weapon used and the number of times he struck the deceased leave no other conclusion except that the accused foresaw that death may ensue, but he persisted in the conduct. He reconciled with death. He is found guilty of murder with constructive intention.

Sentencing Judgment

[58]The Court's first task is to decide on whether the murder was committed in aggravating circumstances or not. The court will then be guided as to whether section 47 (4) (a) or (b) applies.

[59] Where it is found that the murder was committed in aggravating circumstances, Section 47 (4) (a) provides for a penalty of imprisonment for life or any definite period of not less than twenty years. Where no aggravating factors are found, the penalty is imprisonment for life or any definite period of less than fifteen years or (if there are special circumstances) of not less than five years.

[60] The sentencing guidelines SI 146/2023 set the presumptive penalty for aggravated murder at 20 years and the presumptive penalty at 15 years imprisonment for where mitigating factors exist.

[61] Both the state and defence submitted that the offence was committed in aggravating circumstances, we agree with them. In terms of Section 47(3)(b) of the Criminal Law Codification Act, murder is committed in aggravating circumstances where the deceased is a person over seventy years. That finding then implies that the court's hands are fettered, the minimum sentence that it can impose is 20 years.

[62] In mitigation, the court will take into account the submissions made by the defence counsel. The accused is a youthful offender with family responsibilities. In fact, his mother was at pains to explain that he was taking care of them as his parents. Two of his children are mentally challenged. He has been in custody for six months, which is not a considerable time awaiting trial.

[63] It would be remiss of this court not to take into account the accused's lived reality. Despite the denial, the probabilities are that the murder was motivated by a genuine belief that his father was a witch or wizard.

[64] Witchcraft is recognized in our communities, although the law has criminalized naming those who practice it. It is not an alien belief. Makaita, the accused's mother, detailed the family and indeed the accused's tormented life due to the deceased's practices. As a Court, we can only take note of the evidence, but we also bear in mind that the deceased can no longer speak. His version cannot be heard. Even if he was a witch, an eye for an eye approach is not justified at law, it will certainly make the whole world blind. The right to life protected in our Constitution is not for the perfect human being, who does not exist anywhere. That right is for everyone by virtue of being a human being. The sanctity of life must be protected by the courts. The belief will be treated as mitigatory.

[65]There was no premeditation, although the accused harbored some vendetta against the deceased. There was no reason for the accused to be so high-handed towards his father. It is highly aggravating that the accused killed his father an octogenarian. Children are expected to honour their parents, even if the parent is good or the worst, that is the command. Instead of protecting his aged father as is expected of children, he was the villain. The accused's demeanor in court did not show any remorse.

[66] The attack on the deceased was callous and incessant. He used a log to assault the deceased all over the body. The detailed post-mortem report showed more than five wounds on the right side of the deceased's body, at the back of his head and on the back of his body.

[67] There is no valid reason to vary the sentence upwards from the minimum in light of the family's belief in witchcraft. Their reality, whether rightly or wrongly held, is that the accused has already suffered due to the deceased's perceived conduct. Had it not been for that the appropriate sentence for a son who kills his old father should be in the region of 25 years.

Accordingly, the following sentence is imposed.

20 years imprisonment.

National Prosecuting Authority, the State's Legal Practitioners

Murambasvina Legal Practice, the accused's Legal Practitioners